

VIRGINIA FORMS OF LOCAL GOVERNMENT
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INTRODUCTION

The purpose of this report is to provide an accessible, factual foundation regarding any changes to Arlington County's form of government.

Per the Board's direction, this report is organized into the following sections:

- I. Arlington's current form of government under Virginia law and government structures used in other localities;
- II. The current process by which Virginia's jurisdictions with populations above 150,000, including Arlington, can legally change their own structure (*e.g.*, number of seats, districts versus at-large, timing of elections, election of chair, etc.);
- III. Impacts on the School Board and Constitutional Officers; and
- IV. Impacts of transitioning from county to city status.

Key Considerations for Changing Arlington's Form of Government:

- The County Manager Plan grants Arlington numerous unique powers that would be lost upon transition to another county form of government. The loss of these powers must be weighed against gaining other structural changes, such as election districts, a directly elected board chair, or expanding the number of Board seats.
- Three pathways exist for structural change: legislative amendment to the County Manager Plan, referendum to change county form, and conversion to independent city status. Conversion to city status is currently blocked by moratorium until July 1, 2032.
- Each pathway involves distinct tradeoffs between structural flexibility and preservation of existing powers, which are analyzed in detail in this report and summarized in the Conclusion.

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I. ARLINGTON’S CURRENT FORM OF GOVERNMENT AND GOVERNMENT STRUCTURES USED IN OTHER LOCALITIES

This section reviews Arlington’s current form of government and structures used in other localities. First, it provides an overview of the general legal authority for local governments. Second, it provides an examination of the County Manager Plan of government. Third, it examines each of the alternative county government forms and cities, including unique city charter powers. Fourth, it reviews structural questions of chair or mayoral authority, the number of governing body seats, election districts, and timing of elections.

a. Local Government Authority and Alternative Forms of Government, Generally

Any examination of Arlington’s governmental structure and alternative Virginia local government structure must begin with two fundamental legal principles.

First, the Virginia Constitution “vests very broad authority in the General Assembly with respect to local governments. The General Assembly can create or abolish local governments and grant powers to or withhold powers from them. Notably, the General Assembly can enact special laws that grant particular local governments powers that other localities may not have.”¹ Virginia Constitutional Law § 13.01 (2026); Va. Const. art. VII, § 2. The Virginia Supreme Court has stated that this authority “is second to no other provision of the Constitution in value and importance, and cannot be too carefully observed or strictly enforced.” *Campbell v. Bryant*, 104 Va. 509, 513 (1905) (construing this authority in a predecessor to the current Virginia Constitution).

Second, Virginia follows “Dillon’s Rule.” Under Dillon’s Rule, local governments can do only what the General Assembly specifically permits. If a power is not granted by the General Assembly, a locality cannot exercise it. Different government forms come with different grants of authority, and a locality cannot act outside its grant. The Virginia Supreme Court has described Dillon’s Rule as granting local governing bodies “only those powers expressly granted by statute, those necessarily implied therefrom, and those that are essential and indispensable to the exercise of those expressly granted.” *Advanced Towing Co. v. Fairfax Cnty. Bd. of Supervisors*, 280 Va. 187, 193 (2010). Virginia also recognizes “the ‘reasonable selection of method’ rule, which permits local governing bodies to exercise discretionary authority when a statutory grant of power has been expressly made but is silent upon the mode or manner of its execution.” *Id.* When construing the reasonable selection rule, any “doubt is resolved in favor of the method selected to exercise the power.” *Commonwealth v. County Bd.*, 217 Va. 558, 577 (1977).

Further, Dillon’s Rule is not always a straitjacket for local governments. Virginia Code § 15.2-1102 and 15.2-1200 provide cities, towns, and counties broad authority to promote the health, safety, and general welfare of their constituents. These Virginia Code sections clarify that the enumeration of specific powers for a locality is not exclusive or a limitation on any general grant of power, but is in addition to any general grant of power.

That said, and despite the General Assembly’s broad grant of authority expressly and implicitly granted to localities, the following are examples of where the Virginia Supreme Court ruled the County violated Dillon’s Rule:

- To enter into collective bargaining, which has been superseded by statute. *Commonwealth v. Arlington County Board*, 217 Va. 558 (1977);
- To lease private property to a private developer, later superseded by statute and more fully discussed *infra*. *County Board of Arlington v. Brown*, 229 Va. 341 (1985);
- To offer health insurance benefits to employees' domestic partners. *Arlington County v. White*, 259 Va. 708 (2000).

Because of the General Assembly's plenary authority over local government and Dillon's Rule, understanding each Virginia local government form's powers is essential when evaluating which form best serves a locality's goals.

The General Assembly has created six forms of county government: (1) the "traditional" form (the default county form of government);² (2) the County Board Form;³ (3) the County Executive Form;⁴ (4) the County Manager Form (which is distinct from the County Manager Plan);⁵ (5) the County Manager Plan; and (6) the Urban County Executive Form.⁶ The General Assembly has also authorized County charters, which the General Assembly has granted to Chesterfield County, Roanoke County, and James City County. Each form has specific prerequisites and requires a referendum to adopt it. Va. Code Ann. §§ 15.2-300 et seq. The General Assembly has also authorized city charters, but new city charters are under moratorium. City charters function similarly to county government forms.⁷

Virginia's alternative county government forms range from a relatively weak appointed executive model to a strong appointed executive model.

Some key considerations regarding alternative county forms of government include:

- **Administrative Authority:** The County Manager Plan provides the County Manager strong executive and administrative independence from the Board. Other forms grant varying degrees of Board involvement in executive and administrative matters.
- **Arlington County's Unique Powers:** Leaving the County Manager Plan would result in losing numerous authorities, including the Affordable Housing Investment Fund, civil service commission, flexible sanitary district powers, and childcare regulation. This loss of authority would need to be weighed against the goals of transitioning to another form

² For example, Loudoun County operates under this form.

³ Adopted by Carroll, Grayson, Russell, and Scott counties.

⁴ Adopted by Prince William and Albemarle counties.

⁵ Adopted by Henrico County.

⁶ Adopted by Fairfax County.

⁷ Towns are another form of local government but are outside the scope of this report. And for good reason. In 1922, the Virginia Supreme Court held that Clarendon could not incorporate into a town within Arlington County. The inference from the decision is that Arlington County is not situated to permit the incorporation of any towns within the county. *Bennett v. Garrett*, 132 Va. 397 (1922).

of government and whether partial statutory equivalents of these powers mitigate the loss of the unique powers.

- **Constitutional Officers, Police Department, and School Board:** The County Manager Plan retains an elected Treasurer and Commissioner of the Revenue. The County Executive Form, County Manager Form, and Urban County Executive Form all replace these offices with an appointed Director of Finance. A change to a different county government form may also require a separate referendum to retain the Arlington County Police Department and an elected School Board.
- **Selection of Chair:** The County Manager Plan and most other county forms have the governing body appoint its own chair as a default. In Counties where members are elected by districts, a referendum on whether there should be a chair of the board elected by residents at large is permissible. The Urban County Executive Form is unique in requiring a separately elected at-large chair with enhanced powers.
- **Election Method:** Only the County Manager Plan requires at-large elections for all Board Members. Other forms permit or require district-based representation. As of July 1, 2026, if the County’s population increases to 400,000 or greater, Virginia law would require Arlington County to have election districts.

With these distinctions in mind, Attachment A is a chart comparing the forms of county government available under Virginia law across six categories: election of chair, election method (at-large versus by district), board size, treatment of constitutional officers, authority over the county manager or executive, and personnel appointment powers. The report now turns to analyzing each county government form in detail, beginning with Arlington’s County Manager Plan.

b. The County Manager Plan, Generally

The General Assembly designed the County Manager Plan “to apply only to Arlington [C]ounty.” *Henrico Cnty. v. Richmond*, 177 Va. 754, 775 (1941). Arlington County adopted the form by referendum in 1930 and has operated under the County Manager Plan since 1932. It is limited to counties with populations exceeding 500 persons per square mile. Va. Code Ann. § 15.2-701.

1. The County Board

The County Manager Plan vests all legislative powers in a five-member County Board.⁸ Va. Code Ann. § 15.2-702. Members are elected at large for staggered four-year terms. *Id.*; Va. Code Ann. § 15.2-705. One seat is up for election each year, with two seats up every fourth year. Each year, the Board must appoint a chair to preside over meetings and serve as the County’s official head. Va. Code Ann. § 15.2-702. The chair has the same powers and duties as other Board members, including a vote, but has no veto. *Id.*

⁸ The term “County Board” is distinct from the term “Board of Supervisors.” The County Manager Plan appears to be the only county form of government that does not refer to its Board members as “supervisors.”

The Board may “exercise and perform all the powers and duties now authorized or imposed by general law or special act on the board of supervisors of such county insofar as they are not inconsistent with the provisions of [the County Manager Plan].” Va. Code Ann. § 15.2-746. The Board also has “all the powers conferred by general law on city councils.” *Id.*

A key question is whether this provision grants the County Board all powers of cities. In short, the provision gives the County Board the powers granted to all city councils, but not any powers granted in specific city charters.

2. The County Manager

Under the County Manager Plan, the County Board appoints a County Manager vested with “[t]he administrative and executive powers of the county, including the power of appointment of all officers and employees whose appointment or election is not otherwise provided by law.” Va. Code Ann. § 15.2-706.

The Board and its members “cannot in any manner dictate the appointment or removal of any county administrative officers or employees who are appointed by the manager or any of his subordinates.” Va. Code Ann. § 15.2-703. The Board interacts with County Manager employees through the Manager and the Board cannot “give orders either publicly or privately to any such county officer or employee.” *Id.*

The policy rationale behind the County Manager’s authority is to create a clear separation between policy-making and day-to-day administration. The Board sets direction and oversees performance but cannot micromanage personnel decisions or bypass the Manager in dealing with staff.

Despite these limitations on direct personnel control, the County Manager Plan does authorize the Board to make certain key appointments independent of the County Manager:

1. County Attorney (Va. Code Ann. § 15.2-1542);
2. Board Clerk (Va. Code Ann. § 15.2-704);
3. County Auditor (Va. Code Ann. § 15.2-709.2); and,
4. As of July 1, 2026, an Independent Policing Auditor (Va. Code Ann. § 15.2-709.3 (effective July 1, 2026)).

The Board is not authorized to hire employees other than those listed above. Va. Code Ann. § 15.2-703.

c. The County Manager Plan’s Powers

While the structure and electoral rules are more rigid than other county forms, under the County Manager Plan, the County Board may exercise many authorities unavailable to other local governments. Transitioning to another form would result in losing these powers. Whether alternative enabling statutes may replicate or approximate the County Manager Plan’s unique powers is discussed below. These powers are organized by theme.

1. Housing, Land Use, and Community Development

A. Purchase, Sale, and Lease of Real Property

Va. Code Ann. § 15.2-734⁹ gives the County Board expansive authority to purchase, sell, exchange, lease (as lessor or lessee), mortgage, pledge, subordinate its interest in, or otherwise dispose of real property. This authority has enabled significant public-private arrangements and partnerships that create or preserve affordable housing. No equivalent authority exists for other local governments. A loss of this authority would call into question the legality of any lease or loan entered under this authority. ***Significance:*** This is the legal foundation for Arlington’s major development partnerships and affordable housing deals.

B. Housing Fund and Voluntary Coordinated Housing Preservation and Development Districts

Va. Code Ann. § 15.2-735 authorizes Arlington’s Affordable Housing Investment Fund (“AHIF”). No equivalent authority exists for other local governments. The general enabling authority under Va. Code Ann. §§ 15.2-957 and 15.2-958 allows all counties to expend public funds for affordable housing preservation and rental assistance, but those provisions are less comprehensive. ***Significance:*** AHIF is Arlington’s primary vehicle for funding affordable housing production and preservation. Losing this authority could compromise the County’s affordable housing goals.

C. Affordable Dwelling Unit Ordinance

In 2006, the General Assembly adopted Va. Code Ann. § 15.2-735.1, giving Arlington authority to require affordable housing units or cash contributions to AHIF as a condition of special exception site plan approval. This authority is unique to the County Manager Plan. Other authorities under Va. Code Ann. §§ 15.2-2304 and 15.2-2305.1 are available depending on government type but are not as robust. Effective July 1, 2026, the General Assembly amended Va. Code § 15.2-2304 to further broaden all localities’ authority over affordable housing. ***Significance:*** This power enables Arlington to require developers to include affordable units in new projects, a key tool for achieving the County’s housing goals.

⁹ The General Assembly enacted this authority following a legal clash between the Board and the Manager over the scope of the Manager’s lawful authority. In the late 1970s, the Board studied the future of the land at the current courthouse complex, which was then a parking lot. The Board concluded that a mix of high density office, hotel, retail, and residential uses would comply with the Comprehensive Plan and zoning ordinance. The Board directed the County Manager to sign a letter of intent to lease county-owned property to a private developer for a 75-year mixed-use ground lease. The Manager refused, citing legal uncertainty. The Board sought a writ of mandamus to compel the Manager to sign the letter of intent. The case reached the Virginia Supreme Court, which ruled in the Manager’s favor, holding that the County lacked authority to enter the ground lease. *Cnty. Bd. of Arlington Cnty. v. Brown*, 229 Va. 341, 347 (1984).

D. Acquisition of Easements for Affordable Housing

Under Va. Code Ann. § 15.2-726, the County Board may acquire by gift or purchase (but not eminent domain) interests in real estate to maintain (i) the character and use of improved real property as rental property or (ii) market rents for a portion of units in multi-family residential property at a percentage of the market rent for the remaining units. No statute expressly authorizes other local governing bodies to acquire residential real property to preserve it and maintain rents for some units at below-market rates. **Significance:** This enables Arlington to purchase interests in apartment buildings to keep rents affordable without using eminent domain.

E. Relocation Assistance Programs

Under Va. Code Ann. § 15.2-729, when the County Board exercises eminent domain using local funds, it must provide relocation assistance just as when state funds are used. **Significance:** Ensures displaced residents receive the same protections regardless of funding source.

F. Tenant Relocation Payments

Va. Code Ann. § 15.2-737 authorizes the County Board to adopt an ordinance requiring the County and residential rental building owners to split reimbursement costs when tenants must relocate because their leases are terminated for building rehabilitation. No similar authority appears available to other local governments. **Significance:** This protects tenants displaced by renovations by ensuring they receive financial assistance.

G. Lighting Level Regulation

Va. Code Ann. § 15.2-742 allows the County Board to regulate exterior illumination levels of buildings and property. The County Executive Form has similar authority. Va. Code Ann. § 15.2-504.1. No similar specific authority appears to be available to other local governments. **Significance:** Enables Arlington to manage light pollution and protect residential neighborhoods from excessive commercial lighting.

H. Civil Penalties for Wrongful Demolition of Historic Buildings

Va. Code Ann. § 15.2-744 permits the County Board to establish civil penalties for wrongfully demolishing, razing, or moving part or all of a building designated historic or within a historic district. Under other forms, it may be possible to treat violations as zoning violations and impose civil penalties under Va. Code Ann. § 15.2-2209. Similar authority exists under the Urban County Executive form. Va. Code Ann. § 15.2-819. **Significance:** Provides a direct enforcement tool to deter unauthorized destruction of Arlington's historic resources.

I. Fee for Certain Vacations, Encroachments, and Abandonments

Va. Code Ann. § 15.2-743 permits Arlington to charge a fee for processing plat vacation applications, encroachments onto County rights of way, and petitions for right-of-way abandonment no greater than the County's demonstrable costs, which may include title examination and appraisal. In lieu of the fee, the County may require the applicant to submit a title examination and appraisal. Other localities appear limited to a \$150 fee. **Significance:** Allows Arlington to recover actual processing costs rather than being limited to an artificially low statutory fee that would require legislative action from the General Assembly to increase.

J. Transfer of Development Rights

Arlington's enabling authority under Va. Code Ann. § 15.2-750, created in 2005, is unique and highly general, permitting the County to craft its transfer-of-development-rights (TDR) ordinance. The alternative generic enabling authority available to other localities under Va. Code Ann. § 15.2-2316.2 is prescriptive and defines how the transfer process must work. In TDR tax litigation, the Virginia Supreme Court construed these two enabling authorities as distinct. *See Johnson v. Arlington Cnty.*, 292 Va. 843, 852 (2016). ***Significance:*** Gives Arlington greater flexibility in designing its TDR ordinance to shift development density from sensitive areas to areas better suited for growth.

K. Postponement of Assessments for Frontage Improvements

Under Va. Code Ann. § 15.2-718, the County Board may postpone payment of assessments for frontage improvements at the property owner's request. Payment, with interest, is required by the owner's death or the property's sale or subdivision. The County Board may also provide for installment payments over ten years under Va. Code Ann. § 15.2-727. By contrast, a Board of Supervisors under the County Board Form may only provide installments over up to twenty years under Va. Code Ann. § 15.2-2413. ***Significance:*** Gives property owners financial flexibility when the County makes infrastructure improvements adjacent to their land.

2. Governance, Personnel, and Human Services

A. Choice of Powers Where Sanitary District Is Involved

Arlington has a sanitary district encompassing the entire County. Under Va. Code Ann. § 15.2-724, the County Manager Plan authorizes the County Board to exercise all sanitary district powers in the County's name, the district's name, or both, and to expend unrestricted County revenue or County bonds for sanitary district purposes. Other forms lack this authority and would require electing whether to act as a sanitary district or as a county, with restricted ability to use County funds for sanitary district purposes. Under the County Manager Plan, the County Board can move seamlessly between these roles. ***Significance:*** Allows the County to deliver sanitary services without bureaucratic duplication or funding restrictions.

B. Purchase and Rental Assistance to Employees

Under Va. Code Ann. § 15.2-720.1, the County Board may by ordinance provide non-state funds to provide grants to County and School Board employees, and constitutional officers' employees, to purchase or rent residences in the County. Notably, there is no statutory limit on grant amounts. The General Assembly recently expanded this authority to other localities. Va. Code Ann. § 15.2-958.2 (effective July 1, 2026). ***Significance:*** Helps recruit and retain employees by offsetting Arlington's high cost of living.

C. Challenges to Real Estate Assessments

The County Manager Plan applies a different standard than other local governments for challenging real estate tax assessments. Under Va. Code Ann. § 15.2-717, the taxpayer must "show that the property in question is valued at more than its fair market value or that the assessment is not uniform in its application, or that the assessment is otherwise invalid or illegal." For other localities, the standard is provided in Va. Code Ann. § 58.1-3984(B). ***Significance:*** Different legal standard.

D. Civil Service Commission

Under Va. Code Ann. § 15.2-721, the County Board appoints a civil service commission that establishes and operates a classified civil service system for designated county employee classes. This system governs the appointment, promotion, demotion, transfer, suspension, reinstatement, retirement, and discharge of employees within those classes. Alternative enabling authority under Va. Code Ann. §§ 15.2-1506 and 15.2-1507 permits only standing or case-specific panels for employee grievances. Collective bargaining may limit this authority's scope depending on the negotiated terms of the specific collective bargaining agreement. **Significance:** Provides a structured, merit-based personnel system that protects employees from political interference in hiring and firing.

E. Human Rights Ordinances and the Prohibition of Discrimination

Under Va. Code Ann. § 15.2-725, the County Board may adopt a human rights ordinance to promote policies ensuring equal opportunity for all persons. The Urban County Executive Form has similar authority. Va. Code Ann. §§ 15.2-853, 15.2-854. Other forms are limited to standard classes established by state law under Va. Code Ann. § 15.2-965. **Significance:** Grants Arlington additional local government authority for civil rights protection beyond what is commonly available to other localities.

F. Retirement Benefits for Part-Time Employees

Va. Code Ann. § 15.2-731 authorizes the County Board to provide retirement benefits for regular part-time employees. The general enabling authority for other localities under Va. Code Ann. § 15.2-1510 is unclear whether those employees must be full-time. **Significance:** Supports recruitment and retention of part-time workers by offering benefits typically reserved for full-time employees.

G. Regulation of Child-Care Services and Facilities

Va. Code Ann. § 15.2-741 permits the County Board to adopt an ordinance regulating and licensing childcare facilities in the county. Counties under the Urban County Executive form and cities have limited authority under Va. Code Ann. § 15.2-914, but that authority excludes facilities licensed by the Commonwealth or operated by religious institutions. Other localities lack any authority; such facilities would be subject to state regulation alone. Arlington County currently regulates homes and centers by ordinance; Alexandria, Norfolk, and Fairfax County regulate homes only. **Significance:** Allows Arlington to set local childcare standards that exceed state minimums, directly affecting the quality of care available to families.

H. Authority to Prohibit and Penalize Acts that Are Misdemeanors Under State Law

Va. Code Ann. § 15.2-747 allows the County Board to mirror state misdemeanor statutes at the local level. The County Manager Form also has this authority. Va. Code Ann. § 15.2-605. Other localities must rely on implied police-power authority to adopt such ordinances (other than traffic infractions, which all localities may adopt under Va. Code Ann. § 46.2-1300), so long as they do not conflict with state law. *See, e.g.,* Virginia Code §§ 15.2-1102, 15.2-1200, and 15.2-1429. **Significance:** Grants Arlington additional options to ensure public safety.

I. Ranked Choice Voting

The County Manager Plan under Va. Code Ann. § 15.2-705.1 authorizes County Board elections to nominate and elect board members by instant runoff voting, also known as ranked choice voting. Under this system, voters rank candidates in order of preference, and tabulation proceeds in rounds until the number of candidates elected equals how many offices will be filled. The State Board of Elections may promulgate regulations for the proper administration of such elections. Other localities must comply with Va. Code Ann. § 24.2-673.1 to provide for ranked choice voting. **Significance:** Provides Arlington with an alternative voting method that does not require additional General Assembly authorization.

J. Preemployment Background Check

The County Manager Plan permits preemployment background checks with the Federal Bureau of Investigation. Va. Code Ann. § 15.2-709.1. Unlike the other provisions of the County Manager Plan, it states it specifically applies to “Arlington County.” Thus, so long as any change in government form retains the name “Arlington County,” this power would be preserved. **Significance:** Allows Arlington to implement security measures appropriate given its proximity to sensitive locations.

K. Collective Bargaining

The County Board was an early adopter of collective bargaining. A transition to a different county form could create uncertainty about whether existing collective bargaining agreements and the underlying collective bargaining ordinance remain in effect. **Significance:** Transitioning from the County Manager Plan may disrupt Arlington’s collective bargaining efforts.

In sum, the County Manager Plan has a robust series of powers that should be carefully considered in transitioning to a different county form of government, as a loss of these powers would have significant impacts on cost, risk, service delivery to residents and the County’s workforce. The report now examines other county and city government forms.

d. Other Virginia County and City Government Forms

As discussed, the Virginia Constitution authorizes the General Assembly to create optional forms of local government by statute. Va. Const. art. VII, § 2. Each county form has specific prerequisites and requires a petition to the circuit court, followed by a referendum, before adopting the new form. The petition requirements vary. In some cases, the Board may file the petition directly, while in others, 10 or 20 percent of the voters must sign and file it. These five optional forms are in addition to the traditional form and county charter forms. *See* Va. Code Ann. §§ 15.2-300 et seq.

Changes from one form of county government to another have limited precedent.¹⁰ And the precedent that exists tends to be a transition from the traditional form or County Board form

¹⁰ In 2010, a coalition called the Committee for a Better Arlington launched a formal change-of-government petition drive seeking a referendum to convert Arlington from the County Manager Plan to a County Board form under Va. Code Ann. § 15.2-300 et seq. and did not obtain sufficient signatures. Markham Heid, *Petition to Change Arlington’s Government Sets Record, But Falls Short*, Wash. Exam’r, Aug. 1, 2010,

to a form with more expansive powers due to urbanization. For example, Prince William County moved from the traditional to the County Executive Form following a referendum in 1971. The Virginia Code provisions on transitioning to a different form of county government provide guidance but leave gaps in how any transition would be achieved in practice and do not appear to contemplate that authorities may be lost in a transition to a different form of county government. The Virginia Code provisions on transitioning to a city are more detailed. Keeping these issues in mind, the different county forms are taken up in turn.

1. Traditional Form

The traditional form of county government is the default for any county. For example, Loudoun County currently operates under this form. The governing body is a county board of supervisors of between 3 and 11 members. Va. Code Ann. § 15.2-1400. Board members may be elected by single or multimember districts or at large. Va. Code Ann. § 24.2-304.1. The chair is selected by board members or by popular vote. Va. Code Ann. § 15.2-1422. The board may appoint a chief administrative officer to handle the administrative affairs of the county and any other duties assigned by the board. Va. Code Ann. §§ 15.2-1540; 15.2-1541. The board retains authority over personnel but may establish a personnel system. Va. Code Ann. §§ 15.2-1401, 15.2-1500, 15.2-1506.

2. County Board Form

Under the County Board form, all powers and duties are vested in a board of supervisors consisting of one at-large member and one member from each magisterial or election district, with the board electing a chair from its membership. Va. Code Ann. § 15.2-402. Board members are elected at the same time for the same terms. *Id.* The Board is the policy-determining body with all rights and powers conferred by general law. Va. Code Ann. § 15.2-403.

The chair receives compensation “not in excess of \$3,000” and other members receive “not in excess of \$2,700” per year. Va. Code Ann. § 15.2-404.

The Board appoints a county administrator who may serve as clerk and is responsible for county administration. Va. Code Ann. §§ 15.2-406, 15.2-407. Constitutional officers continue under general law. Va. Code Ann. § 15.2-408. Except for the Commonwealth’s Attorney, constitutional officers are accountable to the Board in matters affecting the county and perform additional Board-directed duties consistent with their offices. *Id.* The Board can require the Commissioner of the Revenue to prepare all tax bills. Va. Code Ann. § 15.2-409.

The Board sets county policy, may require reports from departments and officers, and may investigate official conduct and finances. Va. Code Ann. § 15.2-403. The county administrator reports on administration and finances as required, examines department records, makes recommendations, and prepares a proposed annual budget under Board direction. Va. Code Ann. § 15.2-407.

<https://www.washingtonexaminer.com/news/1639687/petition-to-change-arlingtons-government-sets-record-but-falls-short/> (last accessed May 26, 2026).

3. County Executive Form

Under the County Executive Form, the board of county supervisors consists of three to nine members elected at-large or by district, with at least one member per district. Va. Code Ann. § 15.2-502. If members are elected from districts, the Board may seek a referendum on whether the chair should be elected at large. Va. Code Ann. § 15.2-503. The board is the policy-determining body and organizes necessary government departments. Va. Code Ann. §§ 15.2-504, 15.2-507.

The Board appoints a County Executive. Va. Code Ann. § 15.2-509. The Board appoints all officers and employees in the administrative service on the County Executive's recommendation. Va. Code Ann. §§ 15.2-512. The Board may also authorize department heads to appoint their own subordinates. *Id.* By law, the county must have the following departments: finance, social services, law enforcement, education, records, and health, with authority for additional departments such as assessments and public works. Va. Code Ann. § 15.2-518. In counties with a population of at least 100,000, the Board may bar former officers and employees, for one year after leaving office or employment, from accepting any form of compensation to provide personal and substantial assistance to a party in a county matter in which they personally and substantially participated while serving the county. Va. Code Ann. § 15.2-515.

The Board sets policy, may investigate officers within its control with subpoena power, and assigns otherwise unassigned powers by ordinance or resolution. Va. Code Ann. §§ 15.2-506, 15.2-508. The County Executive is the administrative head and attends meetings, recommends actions, advises the Board on finances, examines books and papers, submits the proposed annual budget with recommendations, executes the adopted budget, and ensures execution of laws and Board orders. Va. Code Ann. § 15.2-516. Instead of a Treasurer and Commissioner of Revenue, the county has a Director of Finance. Va. Code Ann. §§ 15.2-519, 15.2-521, 15.2-522, 15.2-524.

Under the County Executive Form, multiyear capital projects and outstanding grants may be carried over from year to year without being reappropriated. Va. Code Ann. § 15.2-2506.

4. County Manager Form

Under the County Manager Form, the county's powers are vested in a Board of Supervisors of three to nine members, with the possibility of an additional at-large member depending on referendum results about election methods. Va. Code Ann. §§ 15.2-602, 15.2-603. The Board is the policy-determining body with the same powers as boards of supervisors generally. Va. Code Ann. § 15.2-604. The Board establishes all necessary government departments. Va. Code Ann. § 15.2-607.

The Board appoints a County Manager who serves as administrative head. Va. Code Ann. § 15.2-609. The Manager appoints all officers and employees in the county's administrative service. Va. Code Ann. § 15.2-612.

Under this form, the County Manager appoints the County Attorney, who is expressly accountable to the Manager rather than the Board—raising questions about reporting obligations. Va. Code Ann. § 15.2-633. Required departments include finance, public works, social services, education, and public health, with authority to establish additional departments on the Manager's recommendation. Va. Code Ann. § 15.2-616. Instead of a Treasurer and Commissioner of Revenue, the county has a Director of Finance. Va. Code Ann. §§ 15.2-619; 15.2-621.

5. Urban County Executive Form

The Urban County Executive form is available to counties with populations over 90,000. Va. Code Ann. § 15.2-801. Under this form, the county's powers are vested in a Board of Supervisors with one member from each district plus a separately elected countywide chair who presides over the Board and represents the county at official functions. Va. Code Ann. § 15.2-802. The Chair may also:

- (i) call special meetings;
- (ii) set the Board agenda, subject to Board amendment;
- (iii) appoint county representatives to regional boards, authorities, and commissions authorized by the Board; and
- (iv) create and appoint Board committees with presiding members as authorized by the Board. *Id.*

The Board appoints a vice-chair who performs the Chair's duties in the Chair's absence. *Id.*

The Board is the policy-determining body with the rights and powers of boards of supervisors, governing the county and any service districts. Va. Code Ann. § 15.2-803. The Board appoints an Urban County Executive. Va. Code Ann. § 15.2-804. On the Executive's recommendation, the Board appoints all officers and employees in the administrative service, unless it authorizes the Executive to appoint department heads or department heads to appoint subordinates. Va. Code Ann. § 15.2-807.

Required departments include finance, public works, social services, law enforcement, education, records, and health, with authority to establish additional departments and commissions. Va. Code Ann. § 15.2-823. Instead of a Treasurer and Commissioner of the Revenue, the county has a Director of Finance. Va. Code Ann. §§ 15.2-829; 15.2-840.

Once a county adopts the Urban County Executive form, no unincorporated area inside the county can separately incorporate as a new town or city, no matter how the incorporation might otherwise be pursued. Va. Code Ann. § 15.2-817. After adoption, a city bordering or surrounded by the county may petition to become part of the county. The city's governing body must formally petition the county, and merger terms are set by the county Board's resolution. City voters must approve the change through referendum, and the Board must give final approval. If approved, the city becomes a district within the county. Va. Code Ann. § 15.2-818.

Within 90 days of adopting the Urban County Executive form, the county must divide into five to eleven election districts serving as electoral divisions for Board members and as sanitary districts. Va. Code Ann. § 15.2-855.

The Urban County Executive Form also has the following specific powers:

A. Waste Disposal Regulation.

The county can require all garbage, trash, and refuse produced in the county to be taken to specific waste disposal facilities inside or outside the county under contract. The county may prohibit dumping elsewhere, with exceptions. Single-family home and family farm residents are

exempt if they pay the same fees as others in their area. Manufacturing, mining, processing, refining, and similar industrial businesses are generally exempt unless producing energy or fuel for outside sale. Recyclable materials separated for reuse, construction debris headed to landfills, and waste oil are also exempt. The county can contract for trash pickup and disposal, including energy-from-waste or materials recovery. Va. Code Ann. § 15.2-815.

B. Sewer Line Maintenance.

The county can maintain and upgrade undersized sewer lines installed on or before January 1, 1987. Va. Code Ann. § 15.2-816.

C. Utility Undergrounding.

The county can enter agreements with electric, telecommunications, cable, and other utilities to move above-ground lines underground as part of transportation, commercial, industrial, or traffic-improvement projects. To fund this, the county may impose charges on electric customers: up to \$1/month for residential customers and up to 6.67% of monthly bills for nonresidential customers. Va. Code Ann. § 15.2-816.1.

D. Historic Preservation Penalties.

The county can impose financial penalties on anyone who demolishes, tears down, or moves a building in a historic district or designated as historic without prior approval. Penalties can equal the property's full market value at destruction, including land and structure. Va. Code Ann. § 15.2-819.

E. Nonprofit Recreation Facility Donations.

The county may use public funds for annual donations to nonprofits owning recreational facilities in the county, not exceeding the nonprofit's real estate taxes on that property. The nonprofit cannot be controlled by a church or religious organization with exclusionary membership practices. Va. Code Ann. § 15.2-820.

F. Expedited Development Plan Review.

The county can create a "fast lane" for reviewing development plans. Rather than go through the standard review process, certain plans can go through a quicker, streamlined review. But only plans prepared or reviewed by specially qualified professionals, called "plans examiners," are eligible for the fast track. Va. Code Ann. § 15.2-851.

G. Subdivision Financial Assurances.

The county has authority to require a developer of a subdivision to provide certain financial assurances before the county accepts public improvements associated with the subdivision. Va. Code Ann. § 15.2-851.1.

H. Anti-Discrimination and Human Rights.

The county may enact ordinances prohibiting discrimination in housing, real estate transactions, employment, public accommodations, credit, and education based on race, color, religion, sex, pregnancy, childbirth or related medical conditions, national origin, military status, age, marital status, sexual orientation, gender identity, or disability. The county may also establish a human rights commission with investigative authority. Va. Code Ann. §§ 15.2-853, 15.2-854.

6. Counties with Charters

Counties may seek charters from the General Assembly under Va. Code Ann. § 15.2-200. A “charter county” is one whose powers and organization are defined in a special-act charter, distinct from counties operating solely under an optional form or general law. Charters grant rights and powers additional to those under the current form of government, depending on the charter’s specific language. For example, the Chesterfield County Charter specifically authorizes the creation of a police department without a referendum being required, sets its planning commission at five members, one from each magisterial district, and requires its school board to be five members elected from magisterial districts. Chesterfield County Charter § 6.7; § 7.1; § 8.1.a.

Having considered the county forms of government, the report now turns to cities.

7. Cities

Cities are distinct from counties under Virginia law. Cities, or municipal corporations, “are called into existence” by the people within their boundaries. *Smith v. Kelley*, 162 Va. 645, 649-650 (1934). In contrast, counties are Commonwealth subdivisions created regardless of residents’ wishes. *Id.*

Cities are established when the General Assembly adopts a city charter providing for the establishment of and granting specific authorities to the city.¹¹ Cities receive the same broad authority as counties to adopt measures “necessary or desirable to secure and promote the health, safety, and general welfare of” their inhabitants. Va. Code Ann. § 15.2-1102.

If Arlington became a city, it would automatically enjoy the “Uniform Charter Powers” codified in Va. Code Ann. § 15.2-1100 et seq. There would be no need to restate those powers in a city charter. But the Arlington County Board already has “all the powers conferred by general law on city councils,” which include city Uniform Charter Powers. Va. Code Ann. § 15.2-746. Thus, obtaining powers unique to cities generally is not a reason for converting from county to city status.¹² The potential advantage of becoming a city would be the specific authority conferred by charter. But as stated above, the General Assembly may grant charters to counties without their conversion to cities. Localities may also receive specific authority grants directly within the Virginia Code regardless of the existence of any charter, such as in the County Manager Plan discussed earlier in this report. **There is also currently a temporary moratorium on new city charters until July 1, 2032. Va. Code Ann. § 15.2-3201.** As of the date of this report, there does not appear to be any legislation introduced in the General Assembly to change the moratorium.

¹¹ The General Assembly enacted a city charter for Arlington County in 1946, but the County did not opt to become a city.

¹² A frequently cited reason for a county to convert to city status is to obtain control over local roads. The Virginia Department of Transportation controls a locality’s local roads without such authority. However, this reason is not applicable to Arlington and Henrico counties. Both counties enjoy control over their own local roads due to opting out of the 1932 Byrd Act. *See* 1932 Acts of Assembly Chapter 415 § 11.

Yet even though Arlington enjoys powers general to all cities as described above, powers granted through *specific* city charters are not automatically enjoyed by Arlington.

e. Chairs' and Mayors' Authority

The county government forms take varying approaches to chair authority. Under the County Manager Plan, the County Board appoints a chair from its membership each year. Va. Code Ann. § 15.2-702. The chair presides over Board meetings and serves as the County's official head for ceremonial purposes, but has the same powers as other members, including a vote, and no veto. *Id.* Governing body appointment of its own presiding officer is common among Virginia county government forms. The County Board Form, County Executive Form, and County Manager Form all generally provide for the board to appoint a chair from its membership as a default. Va. Code Ann. §§ 15.2-402, 15.2-502, 15.2-604.

The Urban County Executive Form is the notable exception. Under that form, the chair is elected separately countywide and serves as presiding officer, official head at ceremonial functions, and has additional powers: calling special meetings, setting the Board agenda (subject to amendment), appointing county representatives to regional bodies, and creating Board committees. Va. Code Ann. § 15.2-802. Other counties have authority to directly elect their chair following a referendum. Va. Code Ann. § 15.2-503 (permitting County Executive form to have referendum on direct election of chair under certain conditions); Va. Code Ann. § 15.2-1213 (Loudoun County); Va. Code Ann. § 15.2-1213.1 (Page County). For Arlington to adopt a directly-elected chair model similar to Fairfax County, it would need to transition to a form that has authority to directly elect the Board chair or seek a legislative amendment to the County Manager Plan to permit the direct election of the chair.

Most Virginia cities employ the council–manager form, with an elected council exercising legislative authority and an appointed professional manager handling administration. The mayor is the equivalent of the chair for cities and depending on the city charter, may be elected by the voters or appointed by the council.

Like Board chairs, the mayor is the presiding officer and head of the local government for official and ceremonial purposes and generally has a vote but no veto. Va. Code Ann. § 15.2-1423. Some city and town charters limit the mayor to voting only on ties and grant veto power. *See, e.g.,* Elkton Town Charter § 3.4; Richmond City Charter § 5.05(d).

For cities and towns with charters that provide for a mayor with veto power, Article VII, Section 7 of the Virginia Constitution requires a two-thirds vote of all elected members to override the veto.

f. Number of Seats on the Governing Body

The number of seats on a local governing body depends on the form of government. The County Board Form requires one at-large member plus one per magisterial or election district. Va. Code Ann. § 15.2-402. The County Executive Form and County Manager Form permit three to nine members. Va. Code Ann. §§ 15.2-502, 15.2-602. The Urban County Executive Form requires one member per district plus a separately elected countywide chair. Va. Code Ann. § 15.2-802. Generally, local governing bodies range from three to eleven members. Va. Code Ann. § 15.2-1400(B). The governing body would determine the number of seats, generally after a census. Any seat-number change would affect the Board's quorum requirement and would

require either a change in government form (by referendum) or a General Assembly amendment to the County Manager Plan.

g. Election Districts

The County Manager Plan requires Board members to be elected at-large, meaning all registered voters cast ballots for all seats.¹³ Should Arlington transition to election districts—whether by changing government form or amending the County Manager Plan—the Virginia Constitution and Virginia Code impose several requirements. Va. Const. art. VII, § 5; *See also* Va. Code Ann. § 24.2-304.1. As of July 1, 2026, any locality with population over 400,000 must establish single-member election districts for its governing body and may provide for at-large election of the presiding officer. Va. Code Ann. § 24.2-304.1(E) (effective July 1, 2026).

First, each election district must “be composed of contiguous and compact territory and shall be so constituted as to give, as nearly as is practicable, representation in proportion to the population of the district.” Va. Const. art. VII, § 5; *see also* Va. Code Ann. § 24.2-304.1(B). The Virginia Constitution mandates reapportionment every ten years. Va. Const. art. VII, § 5. Virginia Code § 24.2-304.1(B) similarly requires reapportionment every ten years “to give, as nearly as is practicable, representation on the basis of population.”

The County Board (or governing body under another name) would set election districts by ordinance. Va. Code Ann. § 24.2-304.1(A). The ordinance and “a description of the boundaries and a map showing the boundaries of the districts or wards” must be recorded in Board meeting minutes. Va. Code Ann. § 24.2-304.3. The redistricting ordinance takes effect immediately but must be adopted at least sixty days before the next general election, with notice published “in a newspaper having general circulation in the election district or precinct once a week for two successive weeks.” Va. Code Ann. § 24.2-306(A).

Article I, § 11 of the Virginia Constitution provides “that the right to be free from any governmental discrimination upon the basis of religious conviction, race, color, sex, or national origin shall not be abridged.” On redistricting, the Virginia Supreme Court has stated that this antidiscrimination clause is “congruent with” the Equal Protection Clause of the U.S. Constitution’s Fourteenth Amendment, meaning race-based districting is prohibited. *Wilkins v. West*, 264 Va. 447, 467 (2002).

There is limited authority on the contiguous-and-compact-territory requirement for local government election districts. The Virginia Supreme Court has considered similar language for congressional and state legislative districts. “Contiguous and compact” appears to require “spatial restrictions.” *Jamerson v. Womack*, 244 Va. 506, 514 (1992). There are no clear

¹³ In 1974 there was a failed legal challenge to Arlington’s at-large electoral system. Plaintiffs argued that the at-large voting arrangement was unconstitutional, diluted their voting strength, and denied them equal access to the democratic process. *Vollin v. Kimbel*, 519 F.2d 790 (4th Cir. 1975). In 1976, the Virginia Supreme Court affirmed the denial of a petition by over 200 Arlington County voters who sought a referendum to change the method of electing the County Board from at-large to magisterial districts. The Court reasoned that this change must come from the General Assembly. *Vollin v. Arlington Cnty. Electoral Bd.*, 216 Va. 674 (1976).

requirements for the “compact” element. *Vesilind v. Va. State Bd. of Elections*, 295 Va. 427, 444-45 (2018).

Federal voting rights protections also apply. Section 2 of the Voting Rights Act of 1965 prohibits any voting standard, practice, or procedure that “results in a denial or abridgement of the right of any citizen of the United States to vote on account of race or color.” 52 U.S.C. § 10301(a). Section 2 has been the primary vehicle for challenging at-large systems as diluting minority voting strength. See *Thornburg v. Gingles*, 478 U.S. 30, 46–51 (1986). But in *Louisiana v. Callais*, the U.S. Supreme Court narrowed Section 2 violations to occur “only when the evidence supports a strong inference that the State intentionally drew its districts to afford minority voters less opportunity because of their race” rather than their political affiliation. 146 S. Ct. 1131 (April 29, 2026).

Additionally, the Virginia Rights of Voters Act of 2021 reestablished state-level preclearance for certain “covered practices,” including changes to governing body election methods. Va. Code Ann. § 24.2-129 et seq. “Preclearance” means the locality must submit proposed changes to the Virginia Attorney General for review before implementation to ensure no discrimination. A transition from at-large to district-based elections would require this state preclearance.

h. Timing of Elections

Elections for mayor, local governing body members, or elected school board members must now be held during November general elections for terms beginning January 1. Va. Code Ann. § 15.2-1400(E). This would remain the case regardless of any change in government form.

Next, this report will consider how local governments can legally change their own structure.

II. THE CURRENT PROCESS BY WHICH VIRGINIA’S JURISDICTIONS WITH POPULATIONS ABOVE 150,000, INCLUDING ARLINGTON, CAN LEGALLY CHANGE THEIR OWN STRUCTURE (E.G., NUMBER OF SEATS, DISTRICTS VERSUS AT-LARGE, TIMING OF ELECTIONS, ELECTION OF CHAIR, ETC.)

Virginia law provides several pathways for localities to modify their governmental structure. This section addresses mechanisms available to jurisdictions with populations over 150,000 for changing structural features. For Arlington, three primary mechanisms exist.

- **Pathway 1 — Legislative Amendment:** The General Assembly may amend the County Manager Plan to add, remove, or modify structural features (*e.g.*, number of seats, election method, or chair powers), including by referendum. This is the simplest mechanism and requires no local referendum, though it does require legislative support in the General Assembly.
- **Pathway 2 — Referendum to Change County Form of Government:** Arlington could transition to a different county form through a referendum. A change in county form would have to be weighed against fundamentally altering the County’s governance structure and would trigger loss of powers unique to the County Manager Plan as discussed above.

- **Pathway 3 — Conversion to Independent City Status:** Arlington could seek to become an independent city, but a temporary moratorium on new city charters remains in effect until July 1, 2032. Va. Code Ann. § 15.2-3201. No county may obtain a new city charter until this moratorium expires or is repealed. The conversion process requires court proceedings, a voter referendum, charter preparation, and General Assembly enactment.

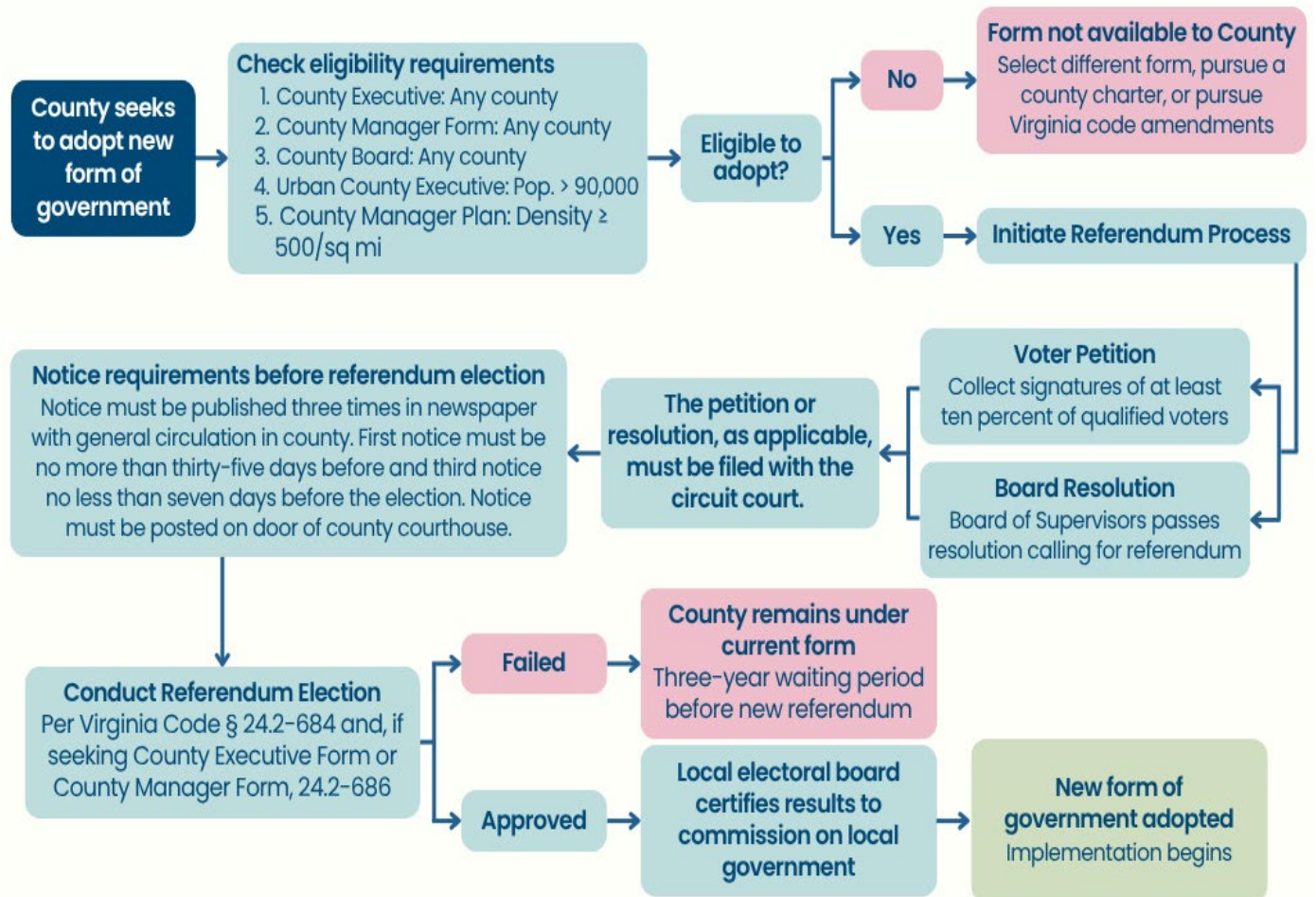
Given the General Assembly’s plenary authority over local government structure, seeking legislative amendments to the County Manager Plan (Pathway 1) is often the most practical means of making specific structural changes without the risks and complexities of a full change in government form. The following subsections address each pathway in detail.

a. Adoption of Optional Forms of Government and Reversion to the Traditional Form of Government, Generally

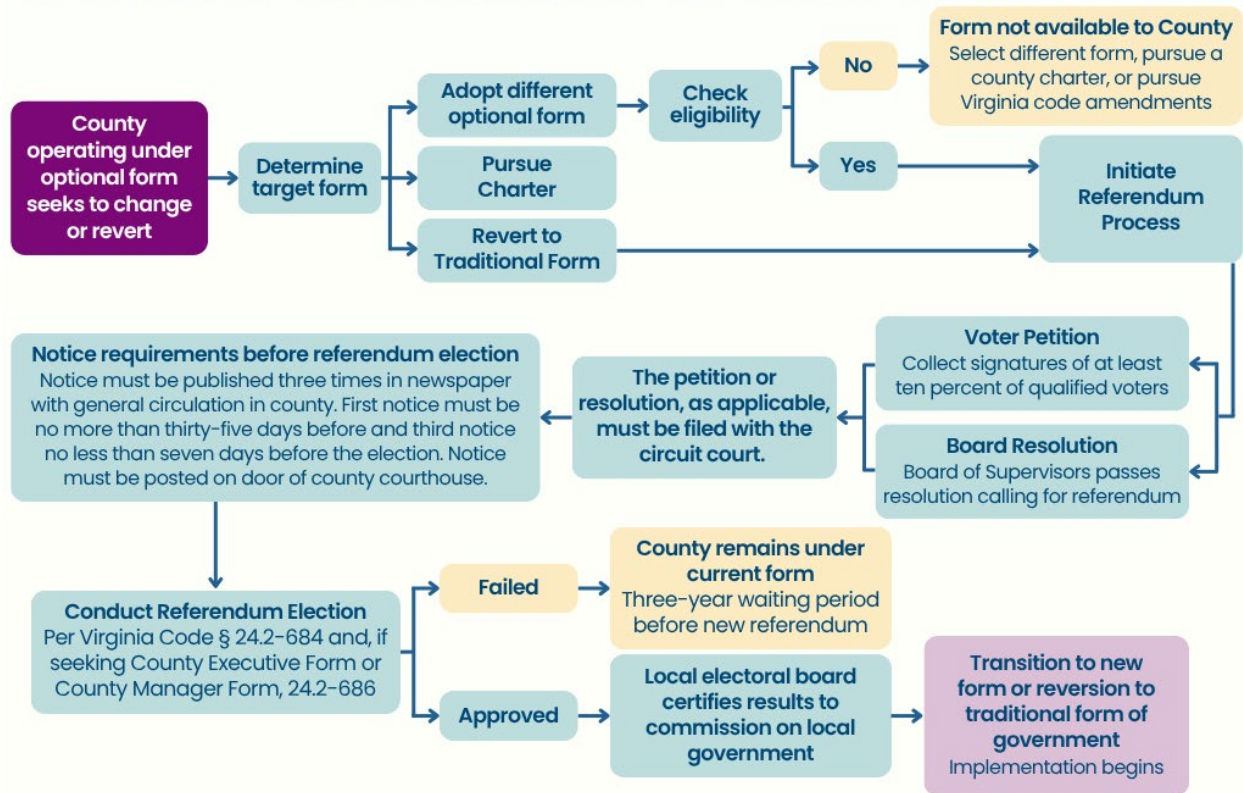
The following flow charts demonstrate the processes for (a) adopting optional forms of government and (b) reverting to the traditional form of government:

(SEE CHARTS ON FOLLOWING PAGES)

ADOPTION OF OPTIONAL FORM OF GOVERNMENT



REVERSION TO TRADITIONAL OR OTHER FORM



See Va. Code Ann. Title 15.2, Chapter 3.

The Virginia Code provides limited direction on transitioning from a county form with robust authorities to a county form with fewer authorities. For example, there is little guidance on the status of contracts, leases, loan agreements, code provisions, and programs that were lawfully entered into or adopted under the prior county form but would no longer be authorized under the new form. Va. Code Ann. § 15.2-302 provides that a change in form of government becomes effective on January 1 following the election at which voters adopt the form of government. Va. Code Ann. § 15.2-304 provides that county officers continue to hold office until their successors are appointed, and that officers whose positions are abolished under a new form of government are either transferred to equivalent positions or their offices are abolished. The Virginia Code's lack of clear guidance poses significant practical implications for continuity of governance, personnel, contracts, and ordinances in a transition to a different form of county government that should be addressed through appropriate legislation, as discussed further.

b. Transition from County to City Status

Assuming the moratorium on new city charters is eventually lifted, Va. Code Ann. §§ 15.2-3900 through 15.2-3919 provides a statutory framework for county-to-city transitions. A county must satisfy three eligibility criteria under Va. Code Ann. § 15.2-3907: (1) minimum population of 20,000 with density of 300 persons per square mile, or 50,000 with density of 140 per square mile; (2) demonstrated fiscal capacity to function as an independent city and provide

appropriate services; and (3) a special court finding that city status serves the parties' best interests and Commonwealth policies (including local government, environmental protection, education, transportation, and housing). Arlington County meets all three criteria based on its 2020 census population, AAA bond rating, and full range of urban services.

Once eligibility is established, the conversion proceeds through a five-step process: (1) the County Board passes an ordinance petitioning the circuit court, which triggers appointment of a special three-judge court; (2) mandatory notice is served on affected parties and published weekly for four successive weeks; (3) the special court holds a pretrial conference and hearing, and if eligibility is confirmed, orders an election within 180–300 days; (4) the County Board appoints a charter commission of at least seven persons to prepare a proposed city charter addressing the transition, assumption of all county debt and obligations, and transfer of assets; and (5) the proposed charter is submitted to voters for referendum.

If voters approve the charter, the special court certifies it to the General Assembly for enactment as a bill. If voters reject the charter, no other election for any change in county government form may be held within three years. Upon enactment, the new city retains its existing legislative and judicial district assignments and may elect to continue receiving Department of Transportation road services for up to ten years.

III. IMPACTS ON THE SCHOOL BOARD AND CONSTITUTIONAL OFFICERS

This section analyzes potential impacts on the School Board and constitutional officers under a change in county form of government, and identifies areas of legal uncertainty requiring legislative clarification. A change in form does not have to impact governance of Arlington Public Schools.

The General Assembly could draft targeted legislative amendments to the County Manager Plan to avoid adverse impacts to the School Board or any constitutional officer, but the scope of protection would depend on the statutory text adopted.

By contrast, a change to a different county form introduces legal uncertainty because the Virginia Code contains gaps regarding the transition process. The Virginia Code does not clearly address whether prior referendums and other lawful acts adopted under the County Manager Plan, such as the referendum establishing an elected School Board, the referendum establishing the Department of Real Estate Assessments,¹⁴ or the 1940 County Board action to create the police department, remain in effect under the newly adopted county form, or whether the default rules applicable to the newly adopted county form would govern instead.

Two competing interpretations exist:

¹⁴ The County Manager Plan permits a referendum to establish a Department of Real Estate Assessments, moving real property assessment authority from the Commissioner of the Revenue to a County Manager-appointed department of real estate assessments. Va. Code Ann. § 15.2-716. Arlington voters approved such a referendum in November 1952. The Board established the Department in 1953, and the Department of Real Estate Assessments has assessed real property in the County since January 1954.

- (1) The School Board, Police Department, and Department of Real Estate Assessments remain constituted as is because they were lawfully created in some cases by voter referendum;

or

- (2) The School Board, Police Department, and Department of Real Estate Assessments must be reconstituted under the new form's rules, potentially requiring a referendum following the change to a different county form.

a. Current Statutory Framework for School Board Composition

Va. Code Ann. § 22.1-47 governs school board composition under the County Manager Plan. The school board under the County Manager Plan must be composed of three to seven members chosen by the County Board. The County Board initially set the number at five, with staggered four-year terms, before the School Board's transition to an elected body.¹⁵ Unlike other government forms, the County Manager Plan does not require the County Board and School Board to elect the same number of members each November. *See* Va. Code Ann. § 22.1-47.4. Other localities must elect equal numbers of local governing body and school board members each November under Va. Code Ann. § 22.1-57.3.B.

If election districts are established and the School Board transitions from at-large to district elections, the districts must share the same boundaries as County Board election districts. *See* Va. Code Ann. § 22.1-57.3.

In transitioning to another form of government, legal ambiguity arises as to the impact on the School Board because the Virginia Code assumes that only one locality would operate under the County Manager Plan, and the statutes governing school board transitions (Va. Code Ann. § 22.1-57.3) do not clearly address what happens when the underlying county form of government changes.

b. Impacts on Constitutional Officers

Arlington County is served by five constitutional officers established by the Virginia Constitution: the Sheriff, Commonwealth's Attorney, Clerk of the Circuit Court, Commissioner of Revenue, and Treasurer. Va. Const. Art. VII, § 4. The various other forms may not include the same number of constitutional officers as the County currently enjoys under the County Manager Plan.

1. Impacts on the Treasurer and Commissioner of the Revenue

Certain other county government forms provide for the Treasurer's and Commissioner of Revenue's functions to be performed by an appointed Director of Finance rather than elected

¹⁵ It does not currently appear that the School Board's five-member composition can be changed without General Assembly legislation or a change to a different form of government. Under Va. Code Ann. § 22.1-57.3(B), the initial elected board must have the same number of members as the appointed board it replaced. Since the appointed board had five members, the elected board continued with five members. Further confirmation appears in Va. Code Ann. § 22.1-47.4, which specifically references "such school board serving a county having the county manager plan of government whose membership totals five."

constitutional officers. The County Executive Form, County Manager Form, and Urban County Executive Form all authorize a Director of Finance. Va. Code Ann. §§ 15.2-519, 15.2-619, 15.2-829.

2. City Status Impact on Constitutional Officers

Transitioning to city status would not eliminate constitutional officers absent specific charter language. Cities also have constitutional officers, including a Sheriff, Commonwealth's Attorney, Clerk of the Circuit Court, Commissioner of the Revenue, and Treasurer (unless the city has opted to replace the latter two with an appointed Director of Finance). Va. Const. art. VII, § 4. The practical impact on constitutional officers from a county-to-city transition would be minimal, as these offices would continue substantially unchanged unless modified by charter.

IV. IMPACTS OF TRANSITIONING FROM COUNTY TO CITY

Transitioning from county to city status involves multiple legal considerations, including significant changes to the public's fiscal obligations, loss of certain procedural protections, and creation of a mayor position. This section explains these impacts.

a. References to Arlington County in the Code of Virginia

Beyond the County Manager Plan, "Arlington County" is referenced by name in multiple titles of the Code of Virginia in provisions that confer special authorities, impose obligations, or designate the county as a member of regional bodies.¹⁶ These name-based provisions carry

¹⁶ *E.g.*, Va. Code Ann. §§ 46.2-754 (authorizing a local motor vehicle licensing system unique to Arlington County); 46.2-1145 (directing the Commissioner of Highways to issue fee-free overweight vehicle permits specifically to Arlington County); 46.2-924(D) (naming Arlington County among a limited set of localities authorized to adopt pedestrian crosswalk yield ordinances); 46.2-1222.1 (naming Arlington County among localities that may regulate parking of certain large vehicles); 5.1-158 (requiring the Metropolitan Washington Airports Authority to enter into a policing agreement with Arlington County and granting the Arlington County police concurrent jurisdiction at Reagan National Airport); 33.2-1904 (naming Arlington County as a constituent member of the Northern Virginia Transportation District and Commission); 33.2-2400 (authorizes Northern Virginia Transportation District Funds to be spent on the Route 50/Courthouse Road interchange improvements in Arlington County and Metrorail capital improvements attributable to Arlington County including Ballston Station improvements); 33.2-2501 (naming Arlington County as a constituent jurisdiction of the Northern Virginia Transportation Authority); 33.2-1526.1(H) (crediting WMATA transit funds to Arlington County by name); 33.2-1700(18) (specifically referencing "the Rosslyn Metrorail station in Arlington County" as an eligible bond-financed project); 15.2-5120 (naming Arlington County and the City of Alexandria as holders of special waste-to-energy contracting authority); 58.1-3237.1 (naming Arlington County among a limited group of counties authorized to enact additional land-use taxation provisions concerning zoning classifications); 58.1-3825.3 (allows Arlington County to impose an additional transient occupancy tax); 1-601 (classifies Arlington County as being in the "North Zone" for the purposes of the Virginia Coordinate Systems); 19.2-163.04 (establishes a public defender office for Arlington County and Falls Church City); 59.1-284.31 (creates the Major Headquarters Workforce Grant Fund for Arlington County); 62.1-44.15:68 and 62.1-44.15:74. (identifies Arlington County as subject to the Chesapeake Bay Protection Act); 5.1-157

significant implications for the continuity of Arlington’s existing statutory authorities in the event of a name change. If the county were to change its name without corresponding legislative amendments to each of these provisions, a facial reading of the statutes would no longer capture the renamed locality, potentially creating ambiguity or gaps in statutory authority that only curative legislation by the General Assembly could resolve. Accordingly, a name change, unlike a change in county form of government, would need a comprehensive legislative package amending every Code section that references “Arlington County” by name to ensure uninterrupted continuity of the county’s special statutory powers, exemptions, and membership designations. Alternatively, Arlington may seek legislation clarifying that any vestigial reference to “Arlington County” shall apply to “The City of Arlington” or other name chosen for the city.

b. Increase in Public Fiscal Obligations

Transitioning from county to city status would substantially increase the public’s fiscal exposure. For example, sovereign immunity is a public finance shield that protects the public from unlimited financial liability to third parties for County services.¹⁷

As the Virginia Supreme Court has often stated, sovereign immunity is “alive and well” in Virginia. *AGCS Marine Ins. Co. v. Arlington Cnty.*, 293 Va. 469, 484 (2017). The Virginia Tort

(specifies that violations of law at National Airport are in the jurisdiction of Arlington County courts); 58.1-3506.2 (authorizes Arlington County to adopt an alternative tax technique for the purposes of Virginia Code Title 58.1, Chapter 35, Article 1.01); 15.2-1508.3 (allows Arlington County to provide additional income to Department of Health employees); 46.2-932 (allows Arlington County to permit the use of devices on wheels or runners on highways notwithstanding the restrictions of the section applicable to other localities); 46.2-882 (allows Arlington County to use microcomputers to measure speed); 17.1-506 (denotes that Arlington County and Falls Church City constitute the seventeenth judicial circuit); 37.2-831 (limits Arlington County judicial authority to authorize certain detention procedures); 16.1-69.6 (denotes that Arlington County and Falls Church constitute the seventeenth judicial district); 54.1-407 (exempts land surveyors from certain monumentation and boundary survey requirements in Arlington County); 3.2-2210 (classifies Arlington County within Area VII for the purposes of Virginia Code Title 3.2, Chapter 22); 59.1-284.39 (creates the Shipping and Logistics Headquarters Grant Program for Arlington County); 15.2-1635.1 (allows Arlington County to provide supplemental income to clerks to the extent they are for both the circuit and district courts); 28.2-1403 (allows Arlington County to adopt a coastal primary sand dune zoning ordinance to the extent it has adopted a wetlands zoning ordinance); 18.2-287.4 (prohibits the carrying of certain loaded firearms on places open to the public in Arlington County); 15.2-905 (allows Arlington County to prohibit keeping and remove inoperable vehicles in the open on residential property); 15.2-709.1 (requires the County to require employment applicants to submit to fingerprinting); 58.1-3237.1 (allows Arlington County to include additional provisions in an ordinance authorizing real property taxation); 15.2-2000 (allows counties in Northern Virginia Planning District 8, which includes Arlington County, to adopt snow and ice removal ordinances); 33.2-3000 (lists Arlington County as part of the Washington Metropolitan Area Transit Regulation Compact); 33.2-3100 (lists Arlington County as part of the Washington Metropolitan Area Transit Zone); and 46.2-1138 (allows Arlington County to prescribe weight limits on county highways).

¹⁷ Sovereign immunity is not a shield from actions brought under federal law, such as an action pursuant to 42 U.S.C. § 1983.

Claims Act (Va. Code Ann. § 8.01-195.1 et seq.) partially waives the Commonwealth’s immunity for certain claims against state agencies and employees but does not apply to local governments like Arlington. Under Virginia common law, counties enjoy absolute tort immunity, reflecting their status as integral parts of the Commonwealth. The County Board and County Manager cannot waive sovereign immunity.¹⁸

Cities, by contrast, do not benefit from the fiscal shield protections afforded to counties. Cities are vulnerable to unlimited financial obligations to third parties depending on what act the city was performing when an alleged harm occurs. Two categories matter: A “governmental function” is a core government public service, such as police protection,¹⁹ enforcing the building code,²⁰ and solid waste collection.²¹ A city is protected from unlimited fiscal liability to third parties arising from the city’s performance of these core governmental services.

In contrast to governmental functions, the following services are examples of proprietary services for cities:

- routinely maintaining streets and sidewalks;²²
- operating and maintaining public utilities as opposed to the design of them;²³
- operating and maintaining a swimming pool;²⁴ and
- operating a public housing authority.²⁵

A city is exposed to liability to third parties in performing proprietary services. For activities involving both elements (“mixed-function” cases), courts look at whether the governmental character predominates, which generally preserves immunity.²⁶ Distinctions between governmental and proprietary functions are highly fact specific and often require courts to decide the issue.

Reclassification from county to city would thus remove Arlington’s robust public finance protection and substitute a function-based regime.²⁷ The County would need to review insurance limits, lines of coverage, staffing in the Department of Management and Finance and the County Attorney’s Office, and create risk-transfer protocols for municipal operations likely to be classified as proprietary.

¹⁸ *Commonwealth v. Luzik*, 259 Va. 198, 206 (2000); 1987-1988 Op. Va. Att’y Gen. 91.

¹⁹ *Niese v. City of Alexandria*, 264 Va. 230 (2002).

²⁰ *Boyd v. Brown*, 12 Va. Cir. 54, 59 (Newport News Cir. Ct. August 15, 1986).

²¹ *Ellis v. Jolley*, 304 Va. 552 (2025).

²² *City of Norfolk v. Hall*, 175 Va. 545, 551-52 (1940).

²³ *City of Chesapeake v. Cunningham*, 268 Va. 624 (2004); *Robertson v. Western Virginia Water Auth.*, 287 Va. 158 (2014);

²⁴ *Hoggard v. City of Richmond*, 172 Va. 145 (1939).

²⁵ *VEPCO v. Hampton Redev. & Hous. Auth.*, 217 Va. 30 (1976).

²⁶ *Woods v. Marion*, 245 Va. 44, 45 (1993).

²⁷ Claims of nuisance, inverse condemnation, and other claims are outside the scope of this report.

c. Statutory Protections Continue to Apply

While the common law immunity framework would change significantly, two frequently invoked statutory immunities apply to “any locality” and would continue to protect Arlington post-transition. Va. Code Ann. § 15.2-970 affords sovereign immunity for tort liability arising from flood- and erosion-control works, such as dams, levees, and drainage systems. This protection applies to counties and extends to all localities. Va. Code Ann. § 15.2-1809 immunizes localities from ordinary negligence for claims arising from parks, recreational facilities, and playgrounds, limiting exposure to gross negligence. While Arlington’s financial exposure would expand in proprietary contexts, these statutory protections would remain available.

d. Notice-of-Claim and County Claim-Presentment Procedures

The Virginia Code protects residents of all localities by requiring various claims against localities to be sent to the locality in writing within six months of the incident. The six-month notice-of-claim statute, Va. Code Ann. § 15.2-209, would continue to apply to Arlington as a city as it does to all localities and does not waive sovereign immunity. The notice of claim requirement allows localities to investigate and resolve disputes in an equitable and fiscally responsible manner without resorting to publicly-financed litigation. But Arlington would lose the unique, mandatory, and jurisdictional county monetary claim-presentment regime codified in Va. Code Ann. §§ 15.2-1245 through 15.2-1249 upon converting to a city.

e. Other Public Finance Considerations

The Virginia Constitution further distinguishes between cities and counties in public finance. It limits city or town debt to an amount not exceeding ten percent of assessed taxable real estate value within its boundaries. Va. Const. art. VII, § 10(a). It prohibits counties from contracting debt payable from revenues not collectible in the current year. Va. Const. art. VII, § 10(b). The Virginia Code permits a county, after a referendum, to elect to be treated as a city for purposes of incurring debt and issuing bonds. Va. Code Ann. § 15.2-2639.

The Virginia Constitution requires a three-fourths vote of all elected governing body members for a city or town to convey real property rights to a private party. This supermajority requirement does not apply to counties. Va. Const. art. VII, § 9.

CONCLUSION

There are several fundamental tradeoffs that the Board must weigh in considering any structural change, which are summarized below.

Maintaining the County Manager Plan preserves its powers but limits the Board to at-large elections and an appointed chair. Transitioning to another county form could enable district-based representation and a directly-elected chair, but at the cost of losing authorities or seeking other legislative clarity. Seeking legislative amendments is another method that can achieve specific structural goals (such as district elections or modifying the chair’s powers) without wholesale change but requires General Assembly support. Conversion to city status is unavailable due to the moratorium and would carry significant litigation risk through reduced public financial protections. Additionally, the desirability of changing into a city would depend on the specific city charter.

Suggested Next Steps:

The Board may wish to consider:

(1) identifying the specific structural objectives sought (*e.g.*, district representation, directly-elected chair, expanded powers);

(2) evaluating whether those objectives can be accomplished through targeted legislative amendments rather than wholesale change;

(3) if a change in form is considered, assessing feasibility of obtaining concurrent legislation to preserve the police department, clarify School Board composition, and clarify the validity of existing agreements and ordinances, and workforce and service delivery continuity; and

(4) engaging the public and interested parties in informed discussion.

The Board may also want to commission a companion fiscal impact analysis, such as the cost of lost powers, insurance premium increases from expanded financial exposure, and staffing needs.

ATTACHMENT A

Category ²⁸	County Board Form	County Executive Form	County Manager Form	County Manager Plan (Arlington)	Urban County Executive Form
Election of Chair	Board appoints a chair from its own membership. Va. Code Ann. § 15.2-402. Certain counties have authority for referendum to directly elect chair. <i>E.g.</i> , Va. Code Ann. § 15.2-1213 (Loudoun County)	Appointed by the Board from among its membership. In addition, any county in which members are elected by district may elect the chairman at-large if authorized to do so in a referendum on the issue. Va. Code Ann. § 15.2-503.	Appointed by Board from among its membership under default rules for local governing bodies. Va. Code Ann. § 15.2-1422.	Appointed annually by Board from among its membership. Va. Code Ann. § 15.2-702.	Elected at-large by voters. Va. Code Ann. § 15.2-802.
Election of Members: At Large v. By District	One member elected at large; other members elected from districts. Va. Code Ann. § 15.2-402.	Members may be elected either at large or by district. If elected at large, there still must be one member from each district. If a county chooses the option to elect the chair at-large, members must be elected by district. Va. Code Ann. §§ 15.2-502, 15.2-503.	Members are elected at large or by district, with the option of one at-large member. Any referendum to adopt the form must also allow voters to designate whether representation on the Board will be by district or at-large. If representation by	Members elected at large. Va. Code Ann. § 15.2-705.	Members elected by district. Va. Code §§ 15.2-802, 15.2-855.

²⁸ Charter counties operate under charters granted by the General Assembly. Powers, structure, and organization vary by charter and are additive to those the county holds under its existing form of government.

Category ²⁸	County Board Form	County Executive Form	County Manager Form	County Manager Plan (Arlington)	Urban County Executive Form
			district is chosen, voters must also indicate whether there should be one at-large member. Va. Code Ann. § 15.2-603.		
Size of Board of Supervisors	Not specified in the Virginia Code. See Va. Code Ann. § 15.2-400 et seq. for general provisions governing this form.	Three to nine members. Va. Code Ann. §§ 15.2-502, 15.2-602.	Three to nine members. Va. Code Ann. § 15.2-602.	Five members. Va. Code Ann. § 15.2-702.	Five to eleven members. Va. Code Ann. §§ 15.2-802, 15.2-855.
Impact on Constitutional Officers	Constitutional officers continue in office under general law. Va. Code Ann. § 15.2-408.	The Treasurer and Commissioner of the Revenue are replaced by an appointed Director of Finance. Va. Code Ann. §§ 15.2-519–15.2-522, 15.2-524.	The Treasurer and Commissioner of the Revenue are replaced by an appointed Director of Finance. Va. Code Ann. §§ 15.2-619-620.	Allows the County to establish a Department of Real Estate Assessments. Va. Code Ann. § 15.2-716.	The Treasurer and Commissioner of the Revenue are replaced by an appointed Director of Finance. Va. Code Ann. §§ 15.2-828–829.
Power Over the Chief Executive Officer (e.g., a County Manager, Administrator, or Executive)	The board appoints a County Administrator. The County Administrator may be removed at the pleasure of the board. The County	The board appoints a County Executive. The County Executive may be removed at the pleasure of the board. The County Executive has a	The board appoints a County Manager. The County Manager may be removed at the pleasure of the board. Va. Code	The Board appoints a County Manager. The Board must deal with county officers solely through the manager.	The board appoints the Urban County Executive. The Urban County Executive may be removed at the pleasure of the board. Va. Code

Category ²⁸	County Board Form	County Executive Form	County Manager Form	County Manager Plan (Arlington)	Urban County Executive Form
	Administrator may be designated by the board as the County Clerk. Va. Code Ann. §§ 15.2-406–407	statutory right to participate in all discussions and present views on all matters before Board. Va. Code Ann. §§ 15.2-509–510.	Ann. § 15.2-609–610.		Ann. §§ 15.2-804–805.
Appointment of Personnel	By the Board of Supervisors. The Board may delegate appointment authority to any officer or department head. Va. Code Ann. § 15.2-404.	By the Board of Supervisors, on the recommendation of the County Executive. The Board may delegate to department heads authority to hire subordinates. Va. Code Ann. § 15.2-512.	By the County Manager or by department head as authorized by the County Manager. Va. Code Ann. § 15.2 612.	By the County Manager, unless appointment is provided otherwise by law. Va. Code Ann. § 15.2-706.	By the Board of Supervisors, on recommendation of the Urban County Executive. The Board may authorize the Urban County Executive to appoint department heads and may authorize department heads to appoint subordinates. Va. Code Ann. § 15.2-807.